

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION ADOPTING THE FEE SCHEDULE SETTING THE APPROVED TOWING SERVICE RATES FOR TOWING CHARGES RELATED TO CALLS FOR SERVICE BY THE CHEYENNE POLICE DEPARTMENT MADE PURSUANT TO THE TOW ROTATION LIST."

WHEREAS, Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the Cheyenne city code regulates businesses providing motor vehicle towing and wrecker recovery operations offered to the public within the city;

WHEREAS, Section 5.78.040 of the city code provides for the administration of the tow rotation list by the police department, which list identifies those approved towing and wrecker recovery operations that, on a rotating basis, will be requested by the department to respond to the scenes of accidents, incidents or emergencies involving motor vehicles for provided necessary towing and wrecker recovery services;

WHEREAS, Section 5.78.040(F) of the city code requires the adoption a fee schedule by the Governing Body, setting the authorized service rates to be charged by towing and wrecker recovery operations for services provided in response to service calls made under the tow rotation list;

WHEREAS, upon consultation with many of the towing and wrecker recovery operations operating in Cheyenne, the police department has proposed an updated fee schedule governing service rates under the tow rotation list, which schedule is attached hereto as Exhibit A;

WHEREAS, the Governing Body wishes to adopt the updated fee schedule attached hereto as Exhibit A as the fee schedule for towing charges related to calls for service made pursuant to the tow rotation list, specified under Section 5.78.040 of the city code; and

WHEREAS, by adopting the attached fee schedule, it is the Governing Body's intent to repeal any and all prior resolutions setting a fee schedule for the tow rotation list, including Resolution No. 5548, adopted by the Governing Body on December 9, 2013.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the fee schedule attached hereto as Exhibit A is adopted, effective as of May 28, 2024, as the fee schedule for towing charges related to calls for service made pursuant to the tow rotation list under Section 5.78.040 of the city code; and

BE IT FURTHER RESOLVED, all prior resolutions setting a fee schedule for the tow rotation list, including Resolution No. 5548, adopted by the Governing Body on December 9, 2013, are hereby repealed and superseded by the present Resolution.

PRESENTED, READ AND ADOPTED this _____ day of _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

EXHIBIT A

CITY OF CHEYENNE

- Tow Rotation List Fee Schedule -

This schedule specifies the maximum towing fee that may be imposed for towing services within the City of Cheyenne provided by towing/recovery operations when services are requested by the Cheyenne Police Department using the tow rotation list. No other fees or charges shall be allowed except as authorized under Section 5.78.040(F) of the city code. This fee schedule applies to passenger cars and light trucks and does not include large commercial vehicles and motor homes. In addition, this fee schedule does not apply to abandoned vehicle towing, the fees for which are governed under W.S. 31-13-111(g)(ii).

These maximum towing rates apply to towing/recovery operations participating on the City's towing rotation list under Section 5.78.040 of the city code. City code does not mandate that these maximum rates be charged, but towing/recovery operations shall not charge an amount in excess of the fees specified below when providing services in response to a police Department service request.

Notwithstanding the maximum fees specified below, a towing/recovery operation may charge fees in excess of—or in addition to—this schedule in accordance with Section 5.78.040(F) of the city code upon a showing of good cause and the: 1) Written approval of the police department prior to tow list participant providing the services giving rise to the excess charges; and 2) Submittal of sufficient documentation by the tow list participant as specified by the police department justifying the additional charges. The required documentation required under this paragraph shall be submitted to the police department not more than fifteen (15) calendar days after the date of the services provided by the towing/recovery operation.

Normal in-town tow: <u>Includes the following services:</u> • Accident scene clean-up; • Tow to within 10 miles of incident; • Motorist assist/Road hazard; and • Labor at scene.	\$475.00 (<i>one time</i>)
Use of dollies:	\$75.00 (<i>one time</i>)
Unusual accident/Rollover situation, or additional truck needed:	\$105.00 (<i>per additional truck or operator</i>)
Outside Storage:	\$85.00 (<i>per day</i>) - Does not apply to electric vehicles -
Drop Fee:	\$105.00 (<i>one time</i>)
Gate Fee:	\$150.00 (<i>one time</i>) - Only applies outside normal business hours and on holidays -
Electric Vehicle Storage:	\$100.00 (<i>per day</i>)
Electric Vehicle Handling:	\$150.00 (<i>per day</i>)